

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: September 1, 2026 TIME: 1:30 P.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

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LINE #	CASE #	CASE TITLE	RULING
LINE 1-5	22PR192746	In the Matter of The Anne M. Sorden Living Trust	Petitioner's Motion for Reconsideration; Petitioner's Motions for Sanctions against Respondent and M&H; Petitioner's Motion for a Protective Order; and Discovery Referee's February 4, 2026 recommendation. Ctrl Click (or scroll down) on Line 1 for tentative ruling.

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Calendar Line 1 - 5

Case Name: In the Matter of The Anne M. Sorden Living Trust
Case No.: 22PR192746

INTRODUCTION

The same parties, Carol Sordenstone (“Petitioner”) and James Sorden (“Respondent”), are involved in the following cases: (1) *In re the Anne M. Sorden Living Trust*, 22PR192746; (2) *In re the Sorden Family 2018 Revocable Trust*, dated August 3, 2018, 22PR193370; (3) *James Sorden v. Carol Sordenstone*, 23CV428384; and (4) *In re the Estate of Anne Sorden*, 23PR194757. Anne Sorden (“Decedent” or “Anne”) and Respondent were married and had two now-adult children, Petitioner and Jim Sorden. According to Petitioner, while Decedent was suffering from terminal pancreatic cancer, Respondent misled her into executing the 2018 Sorden Family Trust, Decedent later revoked the 2018 Trust and executed a will and the Anne M. Sorden Living Trust in 2019. She then filed for legal separation on June 4, 2019, and family court proceedings remained pending at her death. Respondent, on the other hand, contends that Decedent caused him to suffer health problems and removed him from his home.

In docket 22PR193370, Respondent, one of the settlors of the Sorden Family 2018 Revocable Trust, dated August 3, 2018, and the current trustee of that trust, filed a petition to confirm trust assets under Probate Code section 850. The petition asserts that Decedent attempted to revoke the Sorden Family 2018 Revocable Trust but the revocation was ineffective. Accordingly, Respondent sought to confirm that certain real and personal property belongs to the trust.

In docket 22PR192746, on July 11, 2022, Petitioner, trustee of the Anne M. Sorden Living Trust dated June 4, 2019, as amended, filed a petition to confirm assets of that trust. Notably, that petition sought confirmation that Decedent’s one half community property interest in the same Morgan Stanley accounts that are the subject of Respondent’s petition in docket 22PR193370 are assets of the Anne M. Sorden Living Trust.

On July 25, 2022, Petitioner also filed a petition to determine ownership of trust assets. On March 18, 2024, in docket 22PR192746, Petitioner filed a first amended petition to determine ownership of trust assets. On July 12, 2024, in docket 22PR192746, Petitioner filed

a second amended petition alleging that Respondent procured Decedent's signature on a provision in the Sorden Family 2018 Revocable Trust that transmuted Decedent's separate property into community property without Decedent's knowledge. The second amended petition alleges that certain Apple stock worth millions of dollars was Decedent's separate property.

On December 29, 2023, Respondent initiated a civil action in docket 23CV428384 asserting that Decedent breached her fiduciary duty owed to Respondent and committed financial elder abuse against him. The complaint alleges that Petitioner aided and abetted in this misconduct. It further alleges that Petitioner converted Respondent's property, which was stored in a home that Petitioner took possession of as trustee of the Anne M. Sorden Living Trust.

On July 9, 2024, the court (Hon. Evette Pennypacker) issued an order consolidating dockets 22PR193370 and 23CV428384 only. Respondent moved to consolidate dockets 22PR192746, 22PR193370, and 23PR194757. The initial hearing was held on November 21, 2025 and the court requested and received supplemental briefing thereafter. Via untitled written order signed and filed January 21, 2026, the court (Hon. Lê Jacqueline Dương) ordered the dockets consolidated for all purposes. Docket 22PR192746 was designated the lead case. The clerk of the court served the order on the parties via mail on January 22, 2026. On January 30, 2026, Respondent filed and served a notice of entry order electronically.

On October 20, 2025, the court filed its order granting Petitioner's motion for summary judgment in docket 22PR193370, finding that the Sorden Family 2018 Revocable Trust was validly revoked by Decedent. The court made no orders regarding docket 23CV428384 because Petitioner's motion did not address the pleadings in that docket. On December 19, 2025, Respondent filed a notice of appeal in docket 22PR193370 challenging the grant of summary judgment as to a Probate Code section 850 petition filed in that docket. No judgment was entered following the entry of that order.

On November 17, 2025, Petitioner filed a petition for order confirming undisputed trust assets to the Anne Sorden Living Trust ("Petition for Enforcement"). The Petition for

Enforcement is expressly based on the court's order granting summary judgment in docket 22PR193370. On January 12, 2026, Respondent filed an opposition.

On June 6, 2025 the court (Hon. Lê Jacqueline Dương) issued an order granting in part and denying in part Respondent's motion to quash a subpoena served by Petitioner on Decedent's and Respondent's estate planning attorney, Stephen N. Yungling, Esq., of the law firm Mullen & Henzell. On October 16, 2025, the court (Hon. Lê Jacqueline Dương) signed an order regarding Petitioner's request that the court enforce its June 6, 2025 order. That order was filed on October 17, 2025.

On February 4, 2026, the discovery referee issued a recommendation regarding a subpoena served by Petitioner on M&H and motion to quash same filed by Respondent. Respondent filed an objection on January 30, 2026 and Petitioner filed a response to that objection. The court will address the recommendation and objection below.

On February 13, 2026, Petitioner filed a motion for reconsideration of the order granting consolidation of all cases. That motion is currently before the court. Concurrently, with that motion, Petitioner filed a motion for relief of waiver because the motion for reconsideration was filed after the 10-day deadline. Respondent opposed both motions and Petitioner has filed a reply.

On March 11, 2026, Petitioner filed (1) a motion for monetary and issue or evidentiary sanctions against Respondent and (2) a motion for monetary sanctions against Mullen & Henzell LLP ("M&H"), that employed Steven N. Yungling, Esq. who was the estate planning attorney for Anne and James Sorden and drafted the 2018 Sorden Family Trust. Both motions are opposed and Petitioner has filed replies.

On March 24, 2026, Petitioner filed a motion for a protective order. Respondent has opposed the motion and Petitioner has filed a reply.

On April 30, 2026, the court (Hon. Charles Adams) issued an order formally appointing Hon. Peter Kirwan (Ret.) as the discovery referee for all purposes and ordered that all currently pending and future discovery disputes must be submitted to the referee save for Petitioner's motion for protective order and Petitioner's two motions for sanctions identified above.

Currently before the Court are Petitioner's motion for reconsideration and associated motion for relief from waiver, Petitioner's motions for sanctions against Respondent and M&H, Petitioner's motion for a protective order, and the discovery referee's February 4, 2026 recommendation. All motions are opposed and replies have been filed as discussed above. The discovery referee's recommendation is also opposed.

Each of these matters previously came on for hearing on May 29, 2026 before the Honorable Theodore Zayner, who continued the matters for further oral argument. Thereafter, additional argument was heard on July 31, 2026 by this Court. The hearing was continued again to September 1, 2026. The Court also requested supplemental briefing regarding Petitioner's motion for reconsideration. Both parties have provided supplemental briefs, which the Court has received and considered.

DISCUSSION

I. Motion for Reconsideration of Order Granting Consolidation and Associated Motion for Relief of Waiver

Petitioner sought reconsideration of the court's order granting consolidation because, after the motion for consolidation was submitted but before the court issued its final order, Respondent filed a notice of appeal in docket 22PR193370 challenging the grant of Petitioner's motion for summary judgment in that case. Petitioner contends that the appeal of the order granting summary judgment in docket 22PR193370 triggers an automatic stay¹ and the trial in

¹ Probate Code section 1310, subdivision (a) provides, "Except as provided in subdivisions (b), (c), (d), and (e), an appeal pursuant to Chapter 1 (commencing with Section 1300) stays the operation and effect of the judgment or order." Similarly, Code of Civil Procedure section 916, subdivision (a) provides, "Except as provided in Sections 917.1 to 917.10, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." In *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180 (*Varian*), the California Supreme Court explained, when a notice of appeal is filed, "'the trial court is divested of' subject matter jurisdiction over any matter embraced in or affected by the appeal during the pendency of that appeal. [Citation.] 'The effect of the appeal is to remove the subject matter of the order from the jurisdiction of the lower court' [Citation.] Thus, 'that court is without power to proceed further as to any matter embraced therein until the appeal is determined.' [Citations.]" (*Id.* at pp. 196-197 [discussing stay in civil cases under Code of

docket 22PR192746 will be delayed while the appeal is ongoing. Recognizing that the motion for reconsideration was filed more than 10 days from service of the notice of entry of the order granting consolidation served by Respondent, Petitioner has filed a separate motion for relief from the Code of Civil Procedure section 1008 deadline. (See Code Civ. Proc., § 1008, subd. (a).)²

On April 16, 2026, the Court posted its tentative ruling indicating that there is no need for de-consolidation of the cases because the case in docket 22PR192746 will not be stayed pending the appeal in docket 22PR193370. Integral to that determination was the fact that the Sixth District Court of Appeal had issued an order to show cause why Respondent’s appeal should not be dismissed as an appeal from a non-appealable order. (See H054004; *Wilkin v. Community Hospital of Monterey Peninsula* (2021) 71 Cal.App.5th 806, 820 [An order granting summary judgment is not an appealable order. [Citation.] An appeal must be taken from a judgment entered based on an order granting summary judgment. [Citation.]”].) The Court noted that dockets 22PR193370 and 23CV428384 had been consolidated but the motion for summary judgment had only addressed the petition in docket 22PR193370. Thus, the Court could not enter judgment despite granting the summary judgment motion. (*Villa Zinfandel, LLC v. Bearman* (2025) 116 Cal.App.5th 848, 862 [Where, as here, “two actions are consolidated ‘for all purposes,’ ‘the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment.’ [Citation.]”].)

Petitioner pointed out that an order finally adjudicating a Probate Code section 850 petition is appealable. She relied on *Estate of Redfield* (2011) 193 Cal.App.4th 1526, 1534, in which the Court of Appeal stated, “Orders of the probate court adjudicating the merits of a section 850 claim and authorizing a compromise of a contest are appealable. ([Prob. Code,] § 1300; *Estate of Green* (1955) 138 Cal.App.2d 211, 214-215.) Although the probate court’s jurisdiction under section 850 is not exclusive, a final judgment from the probate court is conclusive against ‘ “the whole world” and not just the parties to the litigation.’ [Citation.]”

Civil Procedure section 916, et seq.]; *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1427-1428 [same]; *In re Marriage of Varner* (1998) 68 Cal.App.4th 932, 935 [same].)

² All further undesignated statutory references are to the Code of Civil Procedure.

(Fn. omitted.) Probate Code section 1300, subdivision (k) also provides, “In all proceedings governed by this code, an appeal may be taken from the making of, or the refusal to make, any of the following orders: . . . Adjudicating the merits of a claim made under Part 19 (commencing with Section 850) of Division 2.”

While the Court of Appeal initially treated the notice of appeal as one governed by Code of Civil Procedure section 916, this Court recognized that the decision of whether the order granting summary judgment is appealable is determined by the Court of Appeal and not this Court. Accordingly, the Court initially continued the motions pending the outcome of the Court of Appeal’s decision regarding whether to dismiss the appeal in docket H054004. However, at this point, the Court of Appeal has chosen to defer its ruling on the question of appealability to be decided with the outcome of the appeal. Under these circumstances, the motions cannot remain undecided until the Court of Appeal makes its determination on appealability.

A. The Court Need Not Rely on Reconsideration and Relief from Waiver to Sever What Was Originally Docket 22PR192746 from the Consolidated Cases

As discussed above, the motion for reconsideration challenges that grant of consolidation mainly on the ground that the appellate stay in place due to the appeal of the grant of Petitioner’s summary judgment motion in docket 22PR193370 will delay adjudication of the claims in what was originally docket 22PR192746.³ The parties now agree that the Court has authority to sever docket 22PR192746 from the consolidated cases even assuming it could not grant reconsideration. (Supplemental Brief of James Sorden re Severance and Stay Pending Appeal (H054004), pp. 11:23-12:5; Carol E. Sordenstone’s Brief re Trial on the ‘746 Action, pp. 2:16-3:17; see also *Omaha Indemnity Co. v. Superior Court* (1989) 209 Cal.App.3d 1266, 1274 [“A trial court is entitled to change its mind before judgment [citations] and may vacate a prior order for consolidation and order severance. [Citation.]”].) Because both parties agree

³ Once cases are consolidated, the parties file all documents under the lead case docket, which, here is docket 22PR192746. (See Cal. Rules of Court, rule 3.350(c).) Accordingly, the issue here is whether the Petitioner’s July 12, 2024 second amended petition (“SAP”) in docket 22PR192746 may be severed.

that the Court may sever the SAP from the consolidated dockets at this stage, the procedural vehicle of the motion for reconsideration is unnecessary and the Court proceeds under the more straightforward severance analysis.

B. Legal Background for Severance of Actions

“The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code Civ. Proc., § 1048, subd. (b).)

C. Propriety of Severing the SAP

The parties currently agree that the SAP is ready to be tried and they take the position that the Court may hear the petition despite the appellate stay. Nonetheless, “the consent of the parties is ineffective to reinvest the trial court with jurisdiction over the subject matter of the appeal.” (*Lerner v. Superior Court of San Mateo County* (1952) 38 Cal.2d 676, 680.) Accordingly, the Court considers whether the issues raised in the SAP are sufficiently entwined with the issue on appeal that this Court lacks jurisdiction to hear the SAP.

“The purpose of the automatic stay ‘is to protect the appellate court’s jurisdiction by preserving the status quo until the appeal is decided.’ [Citation.] ‘In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results.’ [Citation.] A postjudgment proceeding that is ancillary or collateral to the appeal is not stayed ‘if the proceeding could or would have occurred regardless of the outcome of the appeal.’ [Citation.] If the postjudgment proceedings would not affect the effectiveness of the appeal, the proceedings are permitted. [Citation.]” (*In re Marriage of Ankola* (2019) 36 Cal.App.5th 560, 567.)

The issue on appeal is whether Decedent validly revoked the Sorden Family 2018 Trust. The SAP contains five causes of action as follows: (1) transfer of property to the Anne Trust, “including but not limited to, the Apple stock in Morgan Stanley account no. x9260,

one-half of the balance of the property in that account, one-half of the property in account no. x9262, and one-half of the property in account no. x7111; all property determined to be the separate property of Anne; one-half of all property that is determined to be the community property of Anne and James; and any other property in which it is determined that Anne had an interest as of the date of her death” (SAP, ¶ 88); (2) financial elder abuse against Anne, which appears to be based primarily on Respondent’s actions in allegedly procuring the 2018 Sorden Family Trust and spending of community funds; (3) breach of spousal fiduciary duty; (4) constructive fraud, which appears to be based on Respondent’s misrepresenting the terms of the 2018 Sorden Family Trust, including a transmutation provision that would have the effect of transmuting Anne’s separate property to community property (SAP, ¶ 103); and (5) conversion. The SAP asks that the Court confirm the above-listed property is an asset of Anne’s 2019 trust. (SAP, Prayer for Relief, ¶ 1.)

The SAP also states, “James has refused to transfer Anne’s separate and community property assets to Carol as trustee of Anne’s 2019 trust. . . . James now makes the audacious claim that Anne’s revocation of the 2018 Trust was somehow ineffective due to a procedural technicality and that terms of that trust, including the unwanted and unexpected transmutation provision, control the disposition of Anne’s estate.” (SAP, p. 3:16-25.)

In his opposition to the SAP (“Opposition”), filed October 29, 2024, Respondent contends that the property at issue in the SAP is not Anne’s property but community property under the terms of the 2018 Sorden Family Trust and asserts that the trust was not properly revoked. (Opposition, ¶ 3.) He maintains that Anne never served him with the attempted revocation. (*Id.* at ¶ 18.) He further denies the allegation that Anne revoked the 2018 Trust. (*Id.* at ¶ 69.) He seeks an order that accounts 9260 and 9262 are community property assets of the 2018 Trust. (*Id.*, Prayer, ¶ 3.)

The Court does not see how the first cause of action in the SAP could be adjudicated without a determination regarding whether the 2018 Sorden Family Trust has been revoked and it appears that such a determination would interfere with the Court of Appeal’s judgment. If the property at issue were validly placed in the 2018 Sorden Family Trust, that trust would continue to hold the property and it would not have been validly placed into Anne’s trust.

Moreover, the 2018 Sorden Family Trust contained a transmutation clause that would convert Anne's separate property to community property. Thus, it is unclear to the Court how the Court can adjudicate ownership of the assets listed in the first cause of action in the SAP without consideration of the issue embraced on appeal.

Respondent suggests that, to the extent the SAP may "embrace" the matter on appeal, the issue does not go to adjudication of the SAP's claims but only to the form of the Court's judgment once the SAP is tried. He maintains that "[i]f the Court concludes that any component of the first cause of action is embraced by the appeal, the answer is a reservation, not a freeze: the Court may try character, ownership, and liability together with the remaining claims, and reserve the judgment's distribution directions until the remittitur returns." (Respondent's Supplemental Brief, p. 11:2-5.) But, if the Court cannot determine which trust, if any, owns the assets at issue, it is unclear how the Court can grant what the parties are requesting, namely, an appealable final judgment that disposes of the claims in the SAP.

Nonetheless, at this point, the Court agrees with Petitioner that the time savings and efficiency the Court believed would be had in hearing the SAP with the issues raised in the other actions will not be had. Notably, the Court does not appear to have been aware of the notice of appeal at the time the consolidation order was issued. The Court orders docket 22PR192746 deconsolidated from the remainder of the cases.⁴ As the parties agree that the SAP may be tried at this time, the Court will entertain proposals regarding how the Court may proceed to trial on any portion of the SAP without interfering with the Court of Appeal's jurisdiction at the hearing on this matter.⁵

⁴ As discussed below, however, the November 17, 2025 Petition for Enforcement may not currently be heard pending outcome of the appeal regardless.

⁵ Is it possible that striking or removal from the Court's consideration of portions of the SAP may result in the SAP no longer embracing the issue raised on appeal but, as it stands currently, the Court does not see how the first cause of action may proceed.

D. The November 17, 2025 Petition for Enforcement May Not Be Heard
Pending the Appeal

Docket 22PR192746 now contains two petitions, the SAP and the November 17, 2025 Petition for Enforcement. The Petition for Enforcement is based on the Court’s order granting summary judgment. It alleges that the summary judgment order determine that Anne validly revoked the 2018 Sorden Family Trust and requests that the Court confirm Anne’s property to Anne’s trust. This is necessarily an issue embraced by the issue on appeal, which is whether Anne validly revoked the 2018 Sorden Family Trust. Accordingly, the November 17, 2025 Petition is stayed pursuant to the automatic stay.

Petitioner contends that the Petition for Enforcement is not stayed because orders to pay money are not stayed. Section 917.1, subdivision (a)(1) provides, “Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following: . . . [m]oney or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action.” (§ 917.1, subd. (a)(1).)⁶ Here, the summary judgment order itself did not provide for payment of money; it determined only that Anne validly revoked the 2018 Sorden Family Trust. As Respondent contends, the Petition for Enforcement’s attempt to enforce the summary judgment order is exactly the type of matter that is meant to be stayed under section 916. (See § 916, subd. (a) [“the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, *including enforcement of the judgment or order*”], italics added.) Because the summary judgment order did not direct payment of money, the attempt to enforce the summary judgment order does not fall under the exception in section 917.1, subdivision (a)(1). In short, the November 17, 2025 Petition for Enforcement is stayed by the filing of the notice of appeal regardless of whether the Court would sever it.

⁶ Petitioner cites section 916, subdivision (a)(1) for this proposition but section 916 does not contain a subdivision (a)(1). It appears that Petitioner meant to refer to section 917.1, subdivision (a)(1).

E. The Court Orders Docket 23PR194757 Deconsolidated from the Consolidated Cases

Petitioner contends that docket 23PR194757 should be deconsolidated from the remainder of the actions. Docket 23PR194757 is the probate proceeding for Anne's estate. Petitioner and Respondent have filed competing petitions for probate. The Court agrees with Petitioner that the issues in docket 23PR194757 do not embrace the issues currently on appeal. Docket 23PR194757 is hereby ordered removed from the consolidated dockets and the Court finds that it is not stayed pending the outcome of the appeal.

F. Conclusion

The Court GRANTS the motion for reconsideration and motion for relief to the extent they request that dockets 23PR194757 be deconsolidated from the remainder of the dockets. Dockets 22PR193370 and 23CV428384 remain consolidated. The Court will entertain proposals regarding how the Court may proceed to trial on any portion of the SAP without interfering with the Court of Appeal's jurisdiction at the hearing on this matter.

II. Motion for Protective Order

Petitioner moves for a protective order interpreting the Court's order, signed October 16, 2025 and filed October 17, 2025, granting Respondent's ex parte application to continue trial as only allowing discovery then pending at the time the order was made.⁷ In that order, the Court continued the trial and extended the discovery cutoff and expert witness disclosure deadlines to correspond with the new trial date. Petitioner also argued in the motion that the discovery referee's role should be limited and that she did not agree to the referee or his appointment for all purposes.

In his ex parte application to continue trial, Respondent represented that he still needed to conduct approximately 14 depositions to be ready for trial. At the time, Petitioner had also been unable to take Respondent's deposition and M&H had not produced documents Petitioner asserted were required to allow her to proceed to trial. At the October 16, 2025 hearing on the

⁷ Petitioner also initially argued that discovery is stayed in docket 23CV428384 pending the appeal in docket 22PR193370. She seems to have abandoned that argument on reply.

ex parte applications, Respondent suggested that the Court should appoint a discovery referee and Petitioner agreed.⁸ The Court's order on the ex parte application to continue trial indicated that the discovery referee would be in the best position to determine if any particular item of discovery should be allowed. It made no order that discovery must be limited to those items then pending before the Court. Instead, it held that the discovery referee should be the one to determine if any particular item should be allowed. It did not, as Petitioner seems to contend, require additional court orders to pursue any particular item of discovery.⁹ Accordingly, to the extent the motion seeks an order limiting discovery to those items pending on October 16, 2025, that request is DENIED.

Petitioner asks for an order that the motion to compel responses and documents at the deposition of Yael Rakib was not pending before the Court at the time the October 16, 2025 order regarding Respondent's ex parte application to continue trial was issued. That is correct. Respondent did not file the motion until January 2026. However, the Court did not limit the discovery that could be pursued to that which was currently pending. In fact, the Court expressly indicated that the trial should be continued due to discovery issues, including the fact that Respondent asserted that he needed to take the depositions of 14 additional persons.

⁸ At the October 16, 2025 hearing, Petitioner's counsel stated, "Turning to the issue of the discovery referee, we would be agreeable to a discovery referee appointment as to both cases and all matters. We think that would be a much more efficient way to handle discovery in this case. We'd be more than willing to nominate three names, have Mr. Sorden nominate three names, and either try to come up with one or have the Court appoint one of those. I think that would be a very effective way to move this case along. I think we've mentioned it before, but it hasn't gone anywhere." (See Carol E. Sordenstone's Opposition to James Sorden's Objection to Discovery Referee's Recommended Interim Order, Ex. 8 [transcript of October 16, 2025 hearing], pp. 23:23-24:5.) Further, when asked by the discovery referee about the scope of his appointment at the January 20, 2026 hearing, Petitioner's counsel agreed that the appointment was for all purposes. (*Id.*, Ex. 13 [transcript of January 20, 2026 hearing], p. 67:10-22.) Thus, to the extent Petitioner argues that the court appointed the referee sua sponte with no notice, that argument is without merit and to the extent Petitioner contends that the scope of the referee's authority should be limited, that argument is rejected. Further, on April 30, 2026, the court (Hon. Charles Adams) issued an order appointing a discovery referee pursuant to section 639 for all purposes.

⁹ In the court's view such an order would be contrary to Petitioner's expressed desire to avoid additional costs. If the parties had to litigate in court whether any particular item of discovery would be allowed, the costs could easily become astronomical.

Notably, the Court did not indicate that any particular item of discovery was allowed or disallowed. Instead, as discussed above, it ordered that the discovery referee should address this issue. Thus, the discovery referee may consider any arguments that any particular item of discovery is unnecessary or irrelevant to the pleadings in the consolidated cases.

The April 30, 2026 order expressly stated that the instant motion and Petitioner's motion sanctions were to remain on calendar but all "currently pending and future discovery motions and disputes relevant to discovery" must be submitted to the discovery referee. Accordingly, the hearing date for Respondent's motion to compel further responses to requests for production of documents and motion to compel further responses to special interrogatories, set two, both scheduled for July 29, 2026, is hereby VACATED. Respondent must raise these issues with the discovery referee in the first instance and follow the statutory procedure for objecting to the discovery referee's objection if necessary.¹⁰

The motion for protective order is DENIED except to the extent the motion asks for an order that the motion to compel responses and documents at the deposition of Yael Rakib was not pending at the time the Court made its October 16, 2025 order on Respondent's motion to continue trial.

Respondent request sanctions against Petitioner in the amount of \$17,017.50 under sections 2030.090, subdivision (d) and 2031.060, subdivision (h). Although these sections apply to protective orders in the context of interrogatories and requests for production, as Respondent points out, these are the authorities relied on by Petitioner in the instant motion. Both sections provide for monetary sanctions "against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order . . . , unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Although the Court takes Respondent's point that the motion was brought under the wrong statutes and that Petitioner failed to meet and confer before bringing the motion, the Court also notes that Petitioner brought the instant motion

¹⁰ Respondent asserts that the motion relating to Yael Rakib has also been briefed before the discovery referee and the hearing on that matter is set to be heard by the referee on June 4, 2026.

seeking clarity regarding the Court's October 16, 2025 order granting the ex parte application to continue trial. The Court previously provided clarification regarding its discovery orders at Respondent's request. The Court finds that Petitioner acted with substantial justification and declines to award sanctions in connection with the motion for protective order. Both parties are ordered to meet and confer on all motions for which meet and confer is statutorily required and encouraged to meet and confer even if not required.

III. The Discovery Referee's Recommendation

A. Legal Background

Where the reference is ordered pursuant to Code of Civil Procedure section 639, "the decision of the referee or commissioner is only advisory. The court may adopt the referee's recommendations, in whole or in part, after independently considering the referee's findings and any objections and responses thereto filed with the court." (Code Civ. Proc., § 644, subd. (b).)

A hearing is not required before the court accepts or rejects the referee's recommendation. (*Marathon Nat. Bank v. Superior Court* (1993) 19 Cal.App.4th 1256, 1260.) "[A] discovery referee's report is advisory, not determinative, and that the trial court must independently consider the referee's findings before acting upon the referee's recommendations. One way to do this is to hold a hearing but a hearing is not required as a matter of law. In an exercise of its discretion, the trial court may consider the matter as the circumstances dictate. It follows that where, as here, the trial court's orders demonstrate a considered and careful review not only of the referee's report but also of the transcript of the proceedings held before the referee, and of the stacks of objections, responses, replies and other papers filed after the referee's report was submitted, we are able to say with confidence that the trial court did not abdicate its judicial responsibilities." (*Id.* at p. 1261.)

B. Merits

On February 4, 2026, the discovery referee issued a recommendation regarding the subpoena Petitioner served on M&H. He recommended that items 1 through 11 on M&H's privilege log be produced and that M&H produce a more detailed privilege log so that the referee could evaluate whether items were protected by any relevant privilege. Respondent

filed an objection to the referee's recommendation and Petitioner filed a response. Here, the Court notes that it has before it the recommendation, the transcript of the hearing before the referee, Respondent's objection, and Petitioner's response to the objection, as well as declarations in support of both the objection and the response.

Respondent asserts that the recommendation does not account for two points previously briefed in Court before the referee was appointed, namely: "(1) that the Production Order found Carol Sordenstone to be Anne's successor in interest only for the limited purposes of Evidence Code section 962, which contains inherent 'matter of common interest' limitations; and (2) that Judge Duong's application of Evidence Code sections 960 and 961 was expressly restricted to documents concerning 'Decedent's intent as to the transmutation clause in the 2018 Trust,' consistent with the holding in *DP Pham LLC v. Cheadle* (2016) 246 Cal.App.4th 653 [*DP Pham*]." (James L. Sorden's Objection to Discovery Referee's Recommended Interim Order ("Objection to Recommendation"), p. 2:18-27.)

As to the first point, Respondent contends that Judge Duong's June 6, 2025 Order recognized that Petitioner is the successor in interest for Decedent in her capacity as trustee of Decedent's trust and that Evidence Code section 962 has "common interest limitations." As Respondent correctly points out, Judge Duong ordered that Petitioner was Decedent's successor in interest as the trustee of Decedent's trust. She also ordered that M&H was required to produce all documents that Petitioner would be entitled to pursuant to Evidence Code section 962.

Evidence Code section 962 provides, "Where two or more clients have retained or consulted a lawyer upon a matter of common interest, none of them, nor the successor in interest of any of them, may claim a privilege under this article as to a communication made in the course of that relationship when such communication is offered in a civil proceeding between one of such clients (or his successor in interest) and another of such clients (or his successor in interest)."

In its October 16, 2025 Order, the Court stated, "At the outset, the court clarifies its intent as stated in the June 6, 2025 order. In their briefing regarding Respondent's motion to

quash the subpoena directed to Mr. Yungling, the parties addressed several different bases by which Petitioner might be able to obtain the documents in Mr. Yungling's file despite Respondent's attorney-client privilege objection, including Evidence Code sections 957, 960, and 962 and the presence of a third party during the communications. The court found that the presence of a third party did not destroy the privilege and that Evidence Code section 957 did not provide a basis for Petitioner to receive any documents in the file. Accordingly, the court granted the motion to quash in part to the extent Petitioner may be entitled to documents in the file solely based on those theories and denied it in part to the extent Petitioner may be entitled to documents in the file based on Evidence Code sections 960 and 962. In other words, if Petitioner is entitled to specific documents under Evidence Code section 960 or 962, they must be produced. If she would only be entitled specific documents under Evidence Code section 957 or the theory that the presence of a third party destroyed the privilege, those documents would not need to be produced. Finally, if the documents fell under the category of documents Respondent agreed to produce, the court ordered those documents produced as well." (October 16, 2025 Order, pp. 3:21-4:10.)

At the time the Court issued its prior orders, it was not aware of whether M&H represented Respondent separately or whether the entire representation was a joint representation with Decedent and it did not (and still does not) know what was present in M&H's file or files. And, as mentioned above, the parties made several arguments regarding the potential bases under which Petitioner might be entitled to the documents in the file. The Court determined that Petitioner is entitled to any documents for which the joint representation exception to the attorney-client privilege (Evid. Code, § 962) would apply but it held that, to the extent the sole basis for Petitioner's entitlement to documents in the file was Evidence Code section 957, Petitioner was not entitled to those documents. At this time, as Petitioner points out, M&H has informed the Court that its representation of Respondent and Decedent was a joint representation. (See Carol E. Sordenstone's Opposition to James Sorden's Objection to Discovery Referee's Recommended Interim Order ("Petitioner's Opposition to Referee Objection"), Ex. 8 [transcript of October 16, 2025 hearing], p. 29:8-16 [counsel for M&H confirming "that there is no separate representation of James L. Sorden. Mr. Yungling's

representation of James and Anne Sorden was a joint representation. It primarily related to estate planning, but there were other issues that came up in connection with the estate planning that he assisted with.”].) Thus, it is unclear how any invoices could be unrelated to the joint representation.

Respondent also contends that the Court limited the production of documents to specific categories of documents. It did not. The Court explained that “Respondent agreed to produce the following categories of documents: “(1) Anne and James’ understanding and intentions regarding the characterization of their property as community or separate; (2) The purpose, negotiation, drafting, and understood effect of the transmutation clause in the 2018 Trust; and (3) Communications between Anne, James, and Mr. Yungling regarding the treatment of separate versus community property in their estate plan.” (October 16, 2025 Order, p. 4:12-17.) It did not limit production of documents to those Respondent already agreed to produce. Instead, it held that Petitioner was entitled to the documents Respondent agreed to produce (i.e., those falling within the above three categories), as well as those to which she would be entitled under Evidence Code section 962 and those to which she would be entitled under Evidence Code section 960, as interpreted by *DP Pham*.¹¹ These latter two categories were not limited by subject matter except to the extent the Evidence Code sections and *DP Pham* limit them. Thus, Petitioner is entitled to all documents to which a joint client would be entitled under Evidence Code section 962, all documents to which she would be entitled under Evidence Code section 960, as it has been interpreted by *DP Pham*, and all documents that Respondent had already agreed to produce.

¹¹ Evidence Code section 960 provides, “There is no privilege under this article as to a communication relevant to an issue concerning the intention of a client, now deceased, with respect to a deed of conveyance, will, or other writing, executed by the client, purporting to affect an interest in property.” As explained in the court’s October 16, 2025 order, “In *DP Pham LLC v. Cheadle*, *supra*, 246 Cal.App.4th at p. 673, the Court of Appeal stated, ‘the purpose of these exceptions [in Evidence Code sections 960 and 961] is to allow an attorney to provide testimony about a client’s intention regarding any instrument affecting an interest in property in the same way the exception codified in section 959 allows an attorney to testify about a client’s intention about an attested document on which the attorney served as an attesting witness[.]’ ” (October 16, 2025 Order, p. 5:3-8.)

Respondent contends that the referee did not impose the limitations regarding Evidence Code sections 960 and 961 as Judge Duong had ordered. However, the referee clearly found that the invoices at issue were available to Petitioner via Evidence Code section 962. The referee stated in his recommendation, “It is the Discovery Referee’s opinion that the invoices identified as item numbers 1 – 11 of the privilege log prepared by MH are not protected by the attorney-client privilege and come within the exception identified at Evidence Code section 962, as ruled by Judge Duong. Further, it is the Discovery Referee’s opinion that item numbers 1 – 11 of the privilege log prepared by MH are not protected by the attorney work product doctrine.” (Discovery Referee’s Recommended Interim Order Following Hearing on Jan. 20, 2026, filed February 4, 2026, p. 2:5-9.) As discussed above, if Petitioner is entitled to the documents under Evidence Code section 962, there is no need for the documents to also fall under the purview of Evidence Code section 960 or 961 for them to be produced.

Respondent argues that Evidence Code section 962 is limited to matters of common interest. Thus, he contends that some of the items that would appear on the invoices may not relate to joint representation. Evidence Code section 962 is limited as Respondent contends. (See *Glacier Gen. Assurance Co. v. Superior Court* (1979) 95 Cal.App.3d 836, 842 [“There is a limitation to be found in the statute itself. The limiting phrase is ‘a matter of common interest.’”].) But, M&H has admitted that the representation was a joint representation and it is unclear how or why invoices created in connection with that joint representation would not constitute matters of common interest. Notably, the Court is persuaded by Petitioner’s argument that the characterization of property is relevant to the issues raised in the consolidated cases. Accordingly, the Court adopts the referee’s recommendation regarding production of items 1 through 11.

Respondent also argues that, should the Court order production of items 1 through 11, it should allow M&H to redact them to remove any billing entries that “(a) do not fall within the three categories specified in the [October 16, 2025] Production Order; (b) do not constitute ‘matters of common interest’ under Evidence Code section 962; (c) do not express Decedent’s intent as to the transmutation clause; or (d) contain attorney work product or attorney-client privileged communications not subject to the exceptions found applicable by this Court.”

Again, because M&H has represented that the entire representation was a joint representation, the Court rejects the first three arguments. As to the work product privilege, the referee found that the work product privilege does not apply to invoices as a general rule.

“California courts have generally presumed that invoices for legal services are *not* categorically privileged.” (*Los Angeles County Bd. of Supervisors v. Superior Court* (2016) 2 Cal.5th 282, 299, italics in original.) The California Supreme Court has recognized that “[w]hile invoices may convey some very general information about the process through which a client obtains legal advice, their purpose is to ensure proper payment for services rendered, not to seek or deliver the attorney’s legal advice or representation.” (*Id.* at p. 295.) Thus, it has held that “the contents of an invoice are privileged only if they either communicate information for the purpose of legal consultation or risk exposing information that was communicated for such a purpose.” (*Id.* at p. 300.) The court stated, “To the extent that billing information is conveyed ‘for the purpose of ... legal representation’—perhaps to inform the client of the nature or amount of work occurring in connection with a pending legal issue—such information lies in the heartland of the attorney-client privilege.” (*Id.* at p. 297.) Here, however, because the purpose of representation was joint, the attorney-client privilege may not be asserted to bar Petitioner from receiving the invoices.

As to the work product privilege, Code of Civil Procedure section 2018.030, subdivision (a), governing absolute work product privilege, states, “A writing that reflects an attorney’s impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances.” Section 2018.030, subdivision (b), which governs qualified work product privilege, provides, “The work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.”

The Court disagrees with the referee that invoices can never be covered by the work product privilege. Accordingly, to the extent that the invoices to be produced contain *core* work product, specifically and attorney’s impressions, conclusions, opinions, or legal research or theories under section 2018.030, subdivision (a), M&H may redact the invoices to prevent

disclosure of that core work product at this time. To the extent the invoices contain work product falling under 2018.030, subdivision (b), the Court finds that failure to produce same will prejudice Petitioner's case and any such work product cannot be redacted.

Respondent also objects to the portion of the referee's recommendation indicating that M&H must provide an updated privilege log that includes documents going back to the initiation of the representation rather than from 2018 onward. Respondent contends that the June 6, 2025 Order only required him to produce documents "concerning the three enumerated categories relating to the 2018 Trust and the transmutation clause." (Objection to Recommendation, p. 10:16-19.) As discussed above, the Court did not limit the document production to the three enumerated categories. It ordered that Petitioner is entitled to documents related to the joint representation under Evidence Code section 962. Here, the joint representation began in 2017 based on both Respondent's declaration in support of the motion to quash the subpoena and the representations of M&H's counsel to the discovery referee. (See Petitioner's Opposition to Referee Objection, Ex. 6 [Declaration of James L. Sorden], ¶ 2 ["Stephen N. Yungling, Esq. . . of the law firm Mullen & Henzell LLP previously represented my wife Anne M. Sorden and me in connection with our estate planning. The representation was limited in scope to providing estate planning advice, assisting in the creation of the Sorden Family 2018 Revocable Trust, exchanging asset and property information, fixing title and transfer of real property, and discussing considerations related to lifetime gifts. The representation began in 2017 and concluded in early 2019."]; Ex. 13 [transcript of January 20, 2026 hearing before referee], p. 41:7-11.)

While Respondent filed a declaration in support of his objection to the referee's recommendation indicating that he was mistaken previously and the work on the 2018 trust did not occur in 2017, the Court finds that it is reasonable that a privilege log be provided that includes documents from 2017 if the joint representation occurred in 2017. Respondent's changing recollection of what actual work was conducted in 2017 does not alter this conclusion. Accordingly, the Court adopts the discovery referee's recommendation that M&H be ordered to provide a further privilege log both identifying documents from the beginning of

the joint representation onward and providing further information to allow the referee to make a recommendation as to whether the documents listed on the privilege log are privileged.

The discovery referee's recommendation filed February 4, 2026 is adopted in full save for the order that M&H may not redact core work product privileged material as described in section 2018.030, subdivision (a) from the 11 invoices the discovery referee has ordered produced. M&H may redact only core work product, consisting of an attorney's impressions, conclusions, opinions, or legal research or theories from the 11 invoices.

Petitioner contends that monetary sanctions and issue sanctions are appropriate but she does not specify an amount and she indicates that she will make a separate motion for same. Accordingly, the Court makes no ruling on Petitioner's sanctions in connection with the discovery referee's February 4, 2026 recommendation and Respondent's objection to same.

IV. Motions for Sanctions

Petitioner requests monetary sanctions in the amount of \$211,426.21 against Respondent and M&H. Petitioner also requests that M&H be ordered to pay \$5,000 in sanctions for every day they continue to fail to provide outstanding documents. Finally, she requests issue or evidentiary sanctions against Respondent.

Both motions are based on similar authority and involve similar discovery-related conduct. Accordingly, the Court will discuss the motions together.

A. Petitioner's Request for Judicial Notice

Petitioner requests judicial notice of (1) the Court's July 3, 2024 Order Granting Motion to Consolidate and Denying Motion to Quash, filed on July 9, 2024 in docket 23CV428384 and (2) the Court's October 20, 2025, Order on Matter Taken Under Submission re: Summary Judgment, filed in docket 22PR193370. The request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivision (d) with the caveat that while the Court is free to take judicial notice of the existence of a document in a court file, it may not take judicial notice of the truth of hearsay statements contained therein. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.)

B. Supplemental Declaration of Petitioner's Counsel

On April 23, 2026, Petitioner filed the supplemental declaration of her counsel in support of the motions for sanctions. Respondent objects to the declaration as late-filed. The Court notes that these motions previously came on for hearing on May 8, 2026, at which time they were continued to the instant hearing date of May 29, 2026. Thus, the supplemental declaration is late when the original hearing date is considered. Nonetheless, it was filed before Respondent filed his opposition and he was able to substantively respond to it. Accordingly, the Court will exercise its discretion to consider the supplemental declaration. (Cal. Rules Ct., rule 3.1300(d) [court has discretion to consider late-filed papers]; *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 [same].)

C. Legal Background

To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.

(c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.

(Code Civ. Proc., § 2023.030, subds. (a)-(c).)

“The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. [Citations.] The trial court should consider both the conduct being sanctioned

and its effect on the party seeking discovery and, in choosing a sanction, should ‘ “attempt[] to tailor the sanction to the harm caused by the withheld discovery.” ’ [Citations.] The trial court cannot impose sanctions for misuse of the discovery process as a punishment. [Citations.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 (*Doppes*).)

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” ’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (*Doppes, supra*, 174 Cal.App.4th at p. 992; *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

The sanction imposed “should not exceed that which is required to protect the interests of the party entitled to but denied discovery. Where a motion to compel has previously been granted, the sanction should not operate in such a fashion as to put the prevailing party in a better position than he would have had if he had obtained the discovery sought and it had been completely favorable to his cause.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.)

Non-monetary sanctions are considered a drastic remedy, only appropriate when a party repeatedly and willfully fails to provide evidence to the opposing party. (*Juarez v. Boy Scouts of America, Inc.* (2000) 81 Cal.App.4th 377, 390, disapproved on another ground by *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 222, fn. 9.) The rationale underlying the imposition of an issue sanction is “ ‘that a persistent refusal to comply with an order for the production of evidence is tantamount to an admission that the disobedient party really has no meritorious claim....’ [Citation.]” (*Id.* at p. 390.)

“ ‘ “Only two facts are absolutely prerequisite to imposition of [a non-monetary] sanction: (1) there must be a failure to comply ... and (2) the failure must be wilful [citation].”

[Citation.]’ [Citation.]” (*Vallbona v. Springer* (1996) 43 Cal.App.4th 1525, 1545.) To prevail on a request for non-monetary sanctions, the moving party must establish that there has been a willful failure to comply with the court’s discovery order. (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102.) If the moving party makes such a showing, then the burden of proof shifts to the party seeking to avoid sanctions to establish a suitable justification for his or her conduct. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.)

D. Procedural Background

In July 2023, Petitioner served a deposition notice on Respondent in docket 22PR192746. On November 29, 2023, the Court entered the parties’ stipulation and order for Respondent to appear at his deposition on April 1, 2024 and to produce non-privileged documents. In April 2024, Petitioner filed a motion for monetary and evidentiary sanctions because Respondent failed to appear for his deposition. Respondent filed a competing motion for a protective order. Via written order filed May 15, 2024, the Court (Hon. Duong) denied Petitioner’s requests for sanctions and denied Respondent’s motion for protective order as moot. It ordered Petitioner to serve a new deposition notice on Respondent for a mutually agreeable date and time.

On October 20, 2023, Petitioner served a deposition subpoena for the production of business records on Decedent’s and Respondent’s estate planning attorney, Stephen N. Yungling, Esq., an attorney with M&H, listing only docket number 22PR193370. Mr. Yungling asserted the attorney-client privilege on behalf of Respondent. Petitioner filed a motion to compel compliance with the subpoena, which the Court (Hon. Lori Pegg) denied via written order filed February 20, 2024. At that time, the dockets had not yet been consolidated and the Court found that Petitioner had failed to show relevance for the items sought.

Respondent was deposed on July 16, 18, 19 and 29, 2024. He produced some 3,800 documents in connection with the deposition.¹²

¹² Petitioner contends that Respondent made the initial 3,400 page production 21 minutes before the start of the deposition and out of order and he made the second production of 436 documents on June 29, 2024 when the deposition had been ongoing.

On September 18, 2024, Petitioner served her subpoena on M&H and, in October 2024, Respondent filed his motion to quash that subpoena. As mentioned above, on June 6, 2025 the Court issued an order granting in part and denying in part Respondent's motion to quash a subpoena served by Petitioner on Mr. Yungling and ordering Mr. Yungling to produce the documents Respondent agreed to produce, documents to which Petitioner would be entitled as a successor in interest to a joint client under Evidence Code section 962, and documents to which Petitioner would be entitled under Evidence Code section 960, as limited by case law. In its June 6, 2025 order, faced with Respondent's alleged inability to sit for further deposition, the Court also directed that Respondent be deposed via written deposition questions under section 2028.010. The Court also directed Respondent to respond to certain specific questions regarding his representation by Mr. Yungling. Petitioner represents that Respondent still has not completed his deposition.

On October 16, 2025, the Court signed an order regarding Petitioner's request that the Court enforce its June 6, 2025 order. That order was filed on October 17, 2025.

E. Merits

Petitioner's main argument for sanctions is that both Respondent and M&H failed to provide requested discovery despite the June 6, 2025 Order, the October 16, 2025 Order, and the discovery referee's recommendation filed February 4, 2026 following the hearing on January 20, 2026. As discussed above, the June 6, 2025 Order and the October 16, 2025 Order both found that Petitioner was entitled to documents in M&H's file for Respondent and Decedent to the extent they fell under the exceptions to the attorney-client privilege contained in Evidence Code section 962 and Evidence Code section 960, as interpreted by case law and the three categories of items Respondent had already agreed to produce. The discovery referee ordered M&H to produce 11 invoices related to the representation of Respondent and Decedent and also ordered a more robust privilege log covering documents from the beginning of the representation in 2017 and providing more information for the discovery referee to make his determination regarding whether any privilege could apply to the documents listed on the log. Petitioner contends that Respondent and M&H have violated these orders and refused to provide responsive documents, which are in the possession of M&H.

Petitioner maintains that both M&H and Respondent have misused the discovery process.

(Code Civ. Proc., § 2023.010, subds. (d) [“Failing to respond or to submit to an authorized method of discovery” is a misuse of the discovery process.], (g) [“Disobeying a court order to provide discovery” is a misuse of the discovery process].) Accordingly, the requests sanctions in the amount of \$211,426.21 against M&H, Mr. Yungling, and/or M&H’s counsel and against Respondent for her efforts over the course of more than a year to obtain the requested discovery. She also requests that M&H pay sanctions of \$5,000 per day until the full file is produced. (See *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 605 [“[T]he court could have imposed a significant monetary penalty for every day Watchtower did not search for the documents or for each day the responsive documents were not produced.”].)

Respondent asserts that the Court declined to order monetary and issue sanctions in favor of Petitioner in connection with either the June 6, 2025 Order or the October 16, 2025 Order. In its October 16, 2025 Order, the Court expressly found that M&H and Mr. Yungling acted with substantial justification in failing to turn over the documents as ordered by the Court because Respondent, the surviving client, had objected to their production. (See October 16, 2025 Order, p. 8:20-24.) It further found that the language of the June 6, 2025 Order was not the clearest and that M&H should not be faulted for its narrow interpretation of that order. (See *id.* at p. 8:24-26.) The Court further held that Respondent himself acted with substantial justification in asserting the attorney-client privilege given the dearth of authority regarding the workings of the attorney-client privilege when one joint client is alive and the other is deceased. (See *id.* at pp. 7:18-8:3.) Accordingly, the Court denied Petitioner’s request for issue sanctions against Respondent. The Court also denied Petitioner’s request for sanctions in the June 6, 2025 Order.

In her supplemental declaration, Petitioner’s counsel declares that two emails from Respondent and Jim Sorden to certified public accountant Geoffrey L. Lamb, were produced to her on April 22, 2026. (Supplemental Declaration of Jaime B. Herren in Support of [Motion for Sanctions] (“Supplemental Herren Decl.”), ¶¶ 9-33.) Petitioner contends that one email, dated

October 1, 2018, consists of Jim Sorden forwarding correspondence from Mr. Youngling to Mr. Lamb. (*Id.* at ¶ 11.) She asserts that the second, dated May 1, 2019, is sent from Respondent to Mr. Lamb and discusses Respondent and Decedent's gifting. (*Id.* at ¶ 12.) Petitioner contends that these emails are directly responsive to her subpoena and that the fact that they were not previously produced establishes that Respondent and M&H intentionally concealed documents that they were ordered to produce. In response, Respondent has provided his own declaration in which he asserts that he used key words to search his email account but they did not return the email from himself to Mr. Lamb. (Declaration of James L. Sorden in Opposition to [Motion for Sanctions], ¶ 5.) The Court has reviewed the emails and it appears that both emails were from Jim Sorden to Mr. Lamb. (Supplemental Herren Decl., Exs. P&Q.) Based on the emails themselves, it does not appear that Respondent was included in the recipient or sender lines. Thus, it is not clear that Respondent had access to these emails to be able to produce them. Similarly, the Court is not aware of any affiliation between Mr. Lamb and M&H and it does not appear that M&H would have been able to produce the emails either. Accordingly, the supplemental declaration does not assist Petitioner in establishing that Respondent or M&H knowingly withheld documents.

Ultimately, the Court finds Respondent's argument that the Court previously found that he and M&H acted with substantial justification in failing to produce the documents prior to the October 16, 2025 Order persuasive. Respondent and M&H also argue that the discovery referee's February 4, 2026 interim order is not binding and it must be approved by the Court. Because Respondent has raised an objection to the interim order and the Court had not yet adopted it at the time the parties filed their briefs on these motions, neither M&H nor Respondent has been ordered by the Court to produce documents at this time.

While the Court agrees that the referee's order is not binding until the court adopts it, it is nonetheless troubled by Respondent's apparent position that the October 16, 2025 Order was limited by the three categories of documents the Court ordered Petitioner was entitled to on the basis of Respondent's agreement to produce them. As discussed above, the October 16, 2025 order indicated that Petitioner was also entitled to documents to which a successor in interest of a joint client would be entitled under Evidence Code 962 and those to which she would be

entitled under Evidence Code section 960, as limited by case law. Thus, to the extent documents in the file fall under Evidence Code sections 962 and 960, which are exceptions to the attorney client privilege, Petitioner is entitled to them. Because the Court did not know what documents were in the file or whether there was any representation by M&H or Mr. Yungling that was not joint representation, the Court delegated the task of determining which specific documents would be produced to the discovery referee. The Court finds that the October 16, 2025 Order was clear in that regard. Accordingly, the Court finds that some amount of monetary sanctions is appropriate. Specifically, the Court orders Respondent to pay \$11,068.21, the amount Petitioner incurred in attending the January 20, 2026 hearing with the referee and the \$3,150 incurred in making the instant motion for sanctions against Respondent (half of the \$6,300 Petitioner incurred for both sanctions motions), for a total of \$14,218.21. The Court finds that Respondent's conduct in persisting in his argument, in his objection to the referee's recommendation, that the October 16, 2025 Order was limited solely to the three categories of items he agreed to produce is without substantial justification and tantamount to making an improper objection. (See § 2023.010, subd. (e).) Because M&H is acting at Respondent's direction, the Court finds that M&H should not be sanctioned. Petitioner's motion for monetary sanctions against M&H is DENIED. The motion for monetary sanctions against Respondent is GRANTED IN PART in the amount of \$14,218.21. The Court DENIES Respondent's request for sanctions in connection with the motion for sanctions against him.

The Court declines to sanction M&H \$5,000 per day until it produces the full file. Notably, as discussed above, the Court did not adopt the discovery referee's recommendation until now and the issue of production of the remaining documents listed on the privilege log remains to be decided by the discovery referee. At this time, the issue of whether the work product privilege covers the remaining documents has yet to be decided. Under these circumstances, the Court will not sanction M&H until it produces the full file.

As to the issue of evidentiary sanctions, the Court finds such sanctions premature as it has not yet imposed monetary sanctions and, in fact, found that Respondent acted with substantial justification in opposing the production of documents prior to the Court's October 16, 2025 Order. Further, the discovery referee has not yet decided whether the remaining items

listed on M&H's privilege log (other than the 11 invoices) should be produced. Accordingly, it remains unclear whether Petitioner will receive the documents before trial, which has not yet been re-set. Accordingly, the request for issue or evidentiary sanctions is DENIED.

F. M&H's Request for Sanctions Against Petitioner

M&H asserts that Petitioner should be sanctioned in the amount of at least \$8,120 on the ground that she misused the discovery process within the meaning of section 2023.030 by making repeated requests for sanctions against M&H, all of which have been denied. The Court declines to award sanctions against Petitioner. Here, the Court has ultimately concluded that Petitioner is entitled to much of the discovery she sought and it is customary to request sanctions in connection with a motion to compel. Accordingly, the fact that Petitioner previously requested sanctions, which the Court denied, does not mean that she acted without justification in making the instant sanctions motion. M&H's request for sanctions is DENIED.

CONCLUSION

The Court GRANTS the motion for reconsideration and motion for relief to the extent they request that dockets 23PR194757 be deconsolidated from the remainder of the dockets. Dockets 22PR193370 and 23CV428384 remain consolidated. The Court will entertain proposals regarding how the Court may proceed to trial on any portion of the SAP without interfering with the Court of Appeal's jurisdiction at the hearing on this matter.

Petitioner's motion for protective order is DENIED except to the extent the motion asks for an order that the motion to compel responses and documents at the deposition of Yael Rakib was not pending at the time the Court made its October 16, 2025 order on Respondent's motion to continue trial. Respondent's request for sanctions in connection with the motion for protective order is DENIED. The hearing date for Respondent's motion to compel further responses to requests for production of documents and motion to compel further responses to special interrogatories, set two, both scheduled for July 29, 2026, is hereby VACATED.

The discovery referee's recommendation filed February 4, 2026 is adopted in full save for the order that M&H may not redact core work product privileged material as described in section 2018.030, subdivision (a) from the 11 invoices the discovery referee has ordered

produced. M&H may redact only core work product, consisting of an attorney's impressions, conclusions, opinions, or legal research or theories from the 11 invoices.

Petitioner's motion for monetary sanctions against M&H is DENIED. The motion for monetary sanctions against Respondent is GRANTED IN PART in the amount of \$14,218.21. the request for issue or evidentiary sanctions is DENIED. The request that M&H be sanctioned \$5,000 per day until the entire file is produced is DENIED. The Court DENIES Respondent's request for sanctions in connection with the motion for sanctions against him. The Court also DENIES M&H's request for sanctions.

The parties are ordered to provide a copy of this order to the discovery referee.

The Court will prepare the final order.

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